Servly AG: legal pages for review

Prepared 6 November 2026 · Draft text last updated November 2026

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> **What Servly AG is.** A marketplace app (Android, iPhone and website, servlyag.com) where local businesses in Antigua and Barbuda list their services (photographers, hairdressers, tutors, bus services and more) and customers find them, message them, call them, review them, and (for some businesses) book appointments. Customers use it free. Businesses ("merchants") pay Servly a monthly plan: Starter 50 XCD, Growth 100 XCD, Business 170 XCD, with an optional 25 XCD bookings upgrade. Merchants will pay online through **Antigua Commercial Bank (ACB)**, on CyberSource's secure payment page. Servly never takes payment for the merchants' own services. Planned launch: 15 December 2026 or 7 January 2027.

What I need from you

Please review the three draft documents (Privacy Policy, Terms of Service, Refund and Cancellation Policy) and the new wording the bank asks for, mark any changes on the pages, and help with the questions below. Every paragraph is numbered (for example **T4.1** = Terms, section 4, paragraph 1).

Document	Numbering	Shown at
Privacy Policy	P1 - P9	servlyag.com/privacy and in the app
Terms of Service	T1 - T11	servlyag.com/terms and in the app (agreed at sign-up)
Refund and Cancellation Policy	R1 - R7	servlyag.com/refunds, the Plan screen and Checkout
New wording for the bank (ACB)	N1 - N5	Not on the website yet: Delivery, Exchange and Cancellation, Payment Security, Cards and Currency, Legal and Export Restrictions

Questions for the lawyer

1. **Whose name and address go on these pages?**
   The drafts now use "Servly AG", Old Road Village, St. Mary's Parish, Antigua and Barbuda. The business is registered. Should the pages use the exact registered name, and a registration number?

2. **Sole trader or company?**

   Which structure suits an online marketplace that charges monthly subscriptions, and does it change how these pages are written?

3. **Do the pages meet Antigua and Barbuda's data protection law?**

   Data is stored with Supabase (servers outside Antigua). Emails go through Resend, notifications through Expo, and card payments through ACB and CyberSource. Is the Privacy Policy (P1-P9) enough, and do we need a named contact person for data requests?

4. **Is "not a party to agreements between customers and merchants" enough protection?**

   Servly only connects customers with independent businesses (see the Terms, "What Servly is" and "Liability"). Should merchants agree to anything more, for example a separate merchant agreement, or confirm they hold licences or insurance?

5. **Are automatic monthly renewal and "no refund once a month has started" allowed?**

   Refund Policy R2-R4 and Terms T4. Is anything required by consumer law (notice before renewal, cooling-off period, how cancellation must work)? Does it fit the card rules ACB works under (disputed payments / chargebacks)?

6. **Do the Terms need to cover free trials and launch promo codes?**

   Free trials for Founding Merchants (usually 90 days) and the LAUNCH50 code (50% off the plan for the first 2 months, 25 merchants). These are not in the drafts yet.

7. **Sales tax (ABST) on plan prices**

   Plans are 50 / 100 / 170 XCD per month, plus 25 XCD for the bookings upgrade. Must prices include ABST or show it separately, and on receipts? Registration with Inland Revenue is still to be done.

8. **Please check the new wording the bank (ACB) asks for**

   ACB needs a Delivery Policy, Exchange and Cancellation wording, a Payment Security statement, card and currency wording, and Legal and Export Restrictions on the website. Drafts are on the pages marked N1-N5.

9. **Using the Visa and Mastercard logos**

   ACB asks for the card logos on the website. Is there anything legal to watch for beyond following the card brands' own logo rules?

10. **Is a minimum age of 16 right?**

    Privacy P8 and Terms T3.

11. **Reviews and removing content**

    Customers post star ratings and comments; merchants can reply. Are we protected if a review is false or hurtful (defamation), and is our right to remove reviews and close accounts worded well (T6-T8)?

12. **How long must we keep payment records?**

    When an account is deleted, payment records are kept without the name (P5). How many years does the law require?

13. **Protecting the name and logo**

    Should "Servly AG", the tagline "Whatever you need, someone's ready." and the blue map-pin logo be registered as trademarks?

14. **Customers outside Antigua later**

    We plan to grow to the wider Caribbean. Is "governed by the laws of Antigua and Barbuda" enough, or will each country need changes?

Other notes, fees and next steps

Privacy Policy DRAFT

Shown at servlyag.com/privacy and in the app · Last updated: November 2026

P1. Who we are

P1.1 Servly AG ("Servly", "we") runs the Servly AG marketplace app and website from Old Road Village, St. Mary's Parish, Antigua and Barbuda. This policy explains what personal information we collect, why, and the choices you have.

P2. What we collect

P2.1 Account details: your name or business name, email address and password (stored scrambled; we can never see it).

P2.2 Business details (merchants): business name, description, phone or WhatsApp number, listings, prices, locations and photos you upload.

P2.3 Messages and bookings: the notes and messages you exchange with other users, booking dates and times, and any phone number you choose to share in a conversation.

P2.4 Reviews and reports: star ratings, comments, replies, and reports you send about listings, reviews or users.

P2.5 Payments (merchants): which plan you paid for, the amount, the date and the payment reference. Card details are handled by the payment provider, never by Servly.

P2.6 Call button taps: when anyone taps Call on a listing or business profile, we record which business and listing, and when, to count how many people contacted each business. We do not record who tapped, their phone number, or anything about the call itself.

P2.7 Device information: if you allow notifications, a notification address for your device so we can send you message and booking alerts.

P3. How we use it

P3.1 To run the marketplace: show listings, connect customers with merchants, deliver messages, manage bookings and send reminders.

P3.2 To manage merchant plans, receipts and support requests.

P3.3 To keep Servly safe: investigate reports, remove harmful content, and prevent fraud and abuse.

P3.4 We do not sell your personal information.

P4. Who can see your information

P4.1 Public: listings, business names and descriptions, prices, locations, photos, reviews and merchant replies. A merchant's phone number is public only if they turn on "Show my phone number to customers".

P4.2 Only the two people in a conversation can read its messages and bookings.

P4.3 Service providers who help us run Servly (hosting and database: Supabase; notifications: Expo; emails such as password resets: Resend; the payment provider once connected) process data only on our behalf.

P4.4 We may share information if the law requires it, or to protect the safety of users.

P5. How long we keep it

P5.1 We keep your information while your account is open. When you delete your account, your profile, listings, photos, messages, bookings and reviews are deleted. Payment records are kept without your name for our accounting and legal obligations.

P6. Your choices and rights

P6.1 You can view and edit your details in Account, hide your phone number, block other users, and delete your account at any time (Account > Delete my account).

P6.2 You can ask us for a copy of your information or ask us to correct it by contacting servlyag5@gmail.com.

P7. Security

P7.1 Your data is stored with Supabase, protected by access rules that limit each person to their own information. No system is perfectly secure, so please use a strong, unique password.

P8. Children

P8.1 Servly is not intended for children under 16. Please do not create an account if you are under 16.

P9. Changes and contact

P9.1 We may update this policy and will show the new date at the top. Questions? Contact servlyag5@gmail.com.

> **Lawyer's notes on this document**

Terms of Service DRAFT

Shown at servlyag.com/terms and in the app · Last updated: November 2026

T1. About these terms

T1.1 These terms are an agreement between you and Servly AG for using the Servly AG app and website. By creating an account or using Servly, you agree to them.

T2. What Servly is

T2.1 Servly is a marketplace that connects customers with independent local service providers ("merchants"). Servly does not provide the services listed and is not a party to agreements between customers and merchants.

T2.2 Merchants are responsible for their services, prices, availability, licences and the accuracy of their listings. Customers should agree the details of any job directly with the merchant.

T3. Your account

T3.1 You must give accurate information, keep your password private, and be at least 16 years old. You are responsible for activity on your account.

T4. Merchant plans

T4.1 Merchants pay a monthly subscription (Starter, Growth or Business) and may upgrade to bookings (the booking app). Prices are shown in the app in Eastern Caribbean dollars (XCD). Each payment covers one month; listings are hidden when a plan ends until it is renewed.

T4.2 Plans renew monthly until cancelled. How to cancel, and when payments can be refunded, is explained in our Refund and Cancellation Policy, which is part of these terms.

T5. Bookings

T5.1 Merchants can send a booking for a customer to confirm. A confirmed booking is an arrangement between the customer and the merchant. Merchants may cancel bookings; Servly is not responsible for missed, cancelled or changed appointments.

T6. Reviews

T6.1 Reviews must be honest and about a real experience with the listing. Do not post reviews for your own business, offer rewards for reviews, or post false, abusive or private information. We may remove reviews that break these rules.

T7. What is not allowed

T7.1 Illegal services, scams, spam, fake listings or reviews, harassment, hate, sexual content, or sharing other people's personal information without permission.

T7.2 Trying to get around plan limits or Servly's security, or using Servly to contact people for unrelated marketing.

T7.3 Misleading listings: search tags, titles or descriptions for services the business does not offer, for example adding unrelated tags so a listing shows up in more searches. Such listings may be hidden, suspended or removed, and repeated misuse can lead to the account being closed.

T8. Reports, blocking and removal

T8.1 You can report listings, reviews and users, and block people you don't want to hear from. We may hide content, suspend or close accounts that break these terms.

T9. Liability

T9.1 Servly is provided "as is". To the extent allowed by law, Servly is not liable for the quality, safety or legality of services listed, for disputes between users, or for indirect losses.

T10. Ending your account

T10.1 You can delete your account at any time in Account > Delete my account. We may close accounts that break these terms.

T11. Law and contact

T11.1 These terms are governed by the laws of Antigua and Barbuda. We may update them and will show the new date at the top. Questions? Contact servlyag5@gmail.com.

Lawyer's notes on this document

Refund and Cancellation Policy DRAFT

Shown at servlyag.com/refunds and in the app · Last updated: November 2026

R1. About this policy

R1.1 This policy covers payments made to Servly AG: monthly merchant plans (Starter, Growth and Business) and the bookings upgrade (the booking app). Prices are in Eastern Caribbean dollars (XCD).

R1.2 Servly does not take payment for the services merchants offer. If you paid a merchant for a haircut, a delivery or any other service, refunds for that service are between you and the merchant.

R2. How monthly plans work

R2.1 Each payment covers one month, starting when the plan is activated. Plans renew every month, and the payment method is charged automatically, until the plan is cancelled.

R2.2 If a monthly payment does not go through, the plan ends on its end date and the listings are hidden from customers until it is renewed.

R3. Cancelling

R3.1 You can cancel at any time. In the app, open the ☰ menu > Contact support and choose Billing, or email servlyag5@gmail.com. We will confirm your cancellation.

R3.2 To avoid the next charge, please cancel before your renewal date (shown on your Account page). After you cancel, your plan keeps working until the end of the month you have paid for. Then it ends and your listings are hidden. Your account and listings are kept, so you can renew later.

R4. Refunds

R4.1 Once a month has started, the payment for that month is not refundable, including for unused days or features, unless the law requires otherwise.

R4.2 This also applies if listings are hidden or removed because they broke our Terms of Service.

R5. Billing mistakes

R5.1 If you were charged by mistake (for example charged twice, charged after we confirmed your cancellation, or charged the wrong amount), tell us within 30 days of the charge through Contact support or servlyag5@gmail.com. We will refund the amount charged by mistake.

R5.2 Refunds go back to the card or account you paid with. Your bank may take several business days to show it.

R5.3 If something looks wrong on your statement, please contact us before disputing the charge with your bank. We can usually fix it faster.

R6. Price changes

R6.1 If a plan price changes, we will tell merchants before the new price applies to their next payment.

R7. Law and contact

R7.1 This policy is governed by the laws of Antigua and Barbuda and does not affect any rights you have under that law. We may update it and will show the new date at the top. Questions? Contact servlyag5@gmail.com.

Lawyer's notes on this document

New wording for the bank (ACB) DRAFT

ACB asks for these on the website before it approves online payments. Drafts for your corrections; not published yet.

N1. Delivery Policy

N1.1 Servly AG sells online subscription plans for businesses. Nothing is shipped or delivered by post.

N1.2 A plan starts as soon as the payment is confirmed, usually within minutes. The merchant can see it on their Account page, with a receipt.

N1.3 If a plan has not started within 24 hours of a successful payment, contact us at servlyag5@gmail.com and we will fix it or refund the payment.

N2. Exchange and Cancellation

N2.1 Plans cannot be exchanged for money or for other goods or services.

N2.2 A merchant can move to a bigger plan at any time (it starts straight away), or to a smaller plan (it starts when the paid month ends).

N2.3 A merchant can cancel at any time through Contact support or by email. The plan keeps working until the end of the month already paid for. Refunds follow the Refund and Cancellation Policy.

N3. Payment Security

N3.1 Card payments are processed by Antigua Commercial Bank (ACB) using CyberSource, a Visa company.

N3.2 Card details are typed on CyberSource's secure payment page and sent over an encrypted (HTTPS) connection.

N3.3 Servly AG never sees or stores the full card number or the security code. We keep only the amount, date, plan and payment reference, for receipts and our accounts.

N4. Cards and Currency

N4.1 We accept Visa and Mastercard.

N4.2 All prices are in Eastern Caribbean dollars (XCD), and cards are charged in XCD.

N5. Legal and Export Restrictions

N5.1 Servly AG plans are for businesses and people offering services in Antigua and Barbuda. Merchants must hold any licence or permit their service needs.

N5.2 Servly AG sells digital subscriptions only. No physical goods are sold or exported.

N5.3 We may refuse or remove listings for services that are illegal in Antigua and Barbuda.

Lawyer's notes on this document